

## **G. Nirmalamma And Others vs G. Seethapathi And Others on 19 October, 2000**

**Equivalent citations: 2000(6)ALD487, 2000(6)ALT513, AIR 2001 ANDHRA PRADESH 104, (2000) 6 ANDHLD 487, (2001) MATLR 475, (2000) 6 ANDH LT 513**

**Author: Elipe Dharma Rao**

**Bench: Elipe Dharma Rao**

### **JUDGMENT**

1. This Civil Miscellaneous Appeal No. 1645 of 1997 was filed under Section 384 of Indian Succession Act, 1925 read with Order 41, Rule 1 of the Code of Civil Procedure against the judgment and decree in AS No.29 of 1992 dated 26th February, 1997 on the file of the II Addl. Dist. Judge, Cuddapah, aggrieved by the finding that the first appellant is the wife of late Subba Rachaiah, and the appellants 2 to 4, children born to them are illegitimate children, are not entitled to succeed to the intestate properties of Subba Rachaiah inasmuch as the appellants 2 to 4 are the illegitimate children of late Subba Rachaiah and the second respondent herein is the wife of late Subba Rachaiah and the respondents 1, 3 and 4 are the legitimate children of late Subba Rachaiah and they are entitled to issue succession certificate to succeed to the petition schedule securities and accordingly dismissed the appeal confirming the order and decree dated 13-4-1992 in OP No. 16 of 1991 passed by the learned Subordinate Judge, Rayachoty.

2. The appellants have assailed the correctness and legality of the findings of the Courts below on the ground that having held that the first appellant is the wife of Subba Rachaiah has erred in holding that the appellants are not entitled to succeed to his intestate property and confirmed the finding of the trial Court that the appellants 2 to 4, being illegitimate children, are not entitled to succeed to the property, that the Courts below have erred in holding that the appellants 2 to 4 are not the legitimate children of late Subba Rachaiah; it is further contended that as per Ex.B-1 to B-41, late Subba Rachaiah was the lawful husband of the first appellant and the appellants 2 to 4 are the legitimate children of late Subba Rachaiah, that the Court below has failed to notice that in Service Register the first appellant, after her marriage got changed her surname from 'Matchi' to 'Gannamanthi' after her husband's name and the same was notified in the Gazette dated 24-12-1964, therefore, the Courts below should have held that the appellants 2 to 4 are entitled for grant of succession certificate. It is also contended that in many title deeds, the first appellant has been described as the wife of late Subba Rachaiah and in Ration Card, Ex.B30, issued in the name of late Subba Rachaiah, the name of all the appellants find place in it and the finding of the Courts below that the marriage between the first appellant and late Subba Rachaiah took place subsequent to 1955 is also contrary to facts and law, therefore the judgments of the Courts below are liable to be set aside. It is further contended that on the basis of the facts and circumstances of the case, the lower

Courts should have held that the second respondent is not the legally wedded wife of late Subba Rachaiah, as she failed to prove that her marriage was performed, as per the Hindu rites and customs, and for all the above mentioned reasons, it is submitted that the order passed by both the Courts below is contrary to facts and law and evidence on record and therefore, liable to be set aside.

3. The facts in nutshell are that OP No.16 of 1991 was filed under Section 372 of the Indian Succession Act, 1925 before the Subordinate Judge, Rayachoty, by the petitioners therein to issue succession certificate in their favour, as legal heirs of late Subba Rachaiah in respect of the petition schedule securities and for costs of the petition.

4. For the sake of convenience, the parties are referred as they are referred in the OP as petitioners and respondents. It is averred in the petition that late Subba Rachaiah (hereinafter referred to as the deceased), who retired as a Teacher died on 18-12-1987 leaving behind him the petitioners as his legal heirs. The second petitioner is the wife of the deceased and their marriage was celebrated on 30-12-1939 at Cuddapah and it was consummated and the first petitioner is the son and petitioners 3 and 4 are the daughters of deceased. The deceased was a pensioner and after his death the 2nd petitioner applied for family pension and the Mandal Revenue Officer gave an endorsement that she may apply for succession certificate before competent Court of law since there was a counter claim from the first respondent claiming herself to be the legally wedded wife of the deceased, that by the date of marriage of the second petitioner with the deceased he had no wife living, that the deceased developed illicit intimacy with the first respondent some where in the year 1957 and out of the said intrigue respondents 2 to 4 were born and since the first respondent is not legally wedded wife, the respondents 2 to 4 are illegitimate children and cannot be the legal heirs of the deceased, that at the time of marriage of the second petitioner the deceased was working as a teacher in District Board Engineering Officer, Cuddapah and his GPF account was opened and the second petitioner was shown as his wife and on 11-4-1968 the deceased gifted some properties in favour of the second petitioner under a registered gift deed, describing her as wife of the deceased, that on 27-4-1985 the deceased executed a settlement deed in favour of his grand son Setish, the son of first petitioner and on the same day the deceased executed separate settlement deed in favour of other grand sons Satish and Girish, who are the sons of the first petitioner, that on 22-9-1977 the deceased executed sale deed in respect of some of the properties in favour of the second petitioner, that the petitioners also filed certificate issued by the respectable citizens of Rayachoty testifying to the effect that they intimately knew the family of the deceased and the second petitioner is his wife. Therefore, they prayed to issue a succession certificate in respect of the petition schedule securities in their favour as legal heirs of the deceased.

5. The respondents filed their counter contending that the deceased died intestate in respect of the petition schedule securities on 18-12-1987 in Government Hospital, Cuddapah, but denied leaving the petitioners as his legal heirs and the wedding card filed along with the petition is a got up one and the other documents are created to make use for documentary evidence and they further stated that if at all there was any intimacy with the second petitioner and the deceased, it was illicit intimacy and taking advantage of the illicit intimacy, the second petitioner obtained fraudulent document in her name and in the name of other petitioners, that the petitioners have to prove that they are legal heirs. It is further stated that the first respondent is the legally wedded wife of the

deceased and their marriage was performed on 10-5-1955 in Post Office Street, Rayachoty at her parents house according to Hindu rites and customs, that in 1960 the first respondent was appointed as Staff Nurse and after her appointment she got her surname changed from 'Matli' to 'Gannamanthi' and it was notified in the A.P. Gazette dated 24-12-1964 and the Service Register was also suitably amended. It is further stated that on 6-10-1964 the first respondent purchased Ac.0.12 cents in S.No.30/2 in Akkayapalli Panchayath under a registered sale deed from the mother of the 2nd petitioner's sister's husband, Venkataiah, who also attested the document, in the said document the first respondent's name is mentioned as the wife of the deceased, that the second respondent purchased property under registered sale deed dated 19-5-1970 and in the said document, the name of his father is mentioned as Subba Rachaiah, that the first respondent obtained an assignment deed from the President, Cooperative Society Limited, Cuddapah, dated 22-3-1978 wherein her husband's name is mentioned as Subba Rachaiah, that the son-in-law of the second petitioner's sister by name S. V. Subbanna scribed a pronote, which is the subject matter of OS No.192 of 1988 on the file of the Principal District Munsif, Rayachoty, in favour of the 4th respondent admitting that she is the last daughter of the deceased. It is further submitted that there is ample record to show that the deceased has been living with the respondents continuously ever since the marriage till death, that publication made in Andhra Jyothi on 17-12-1987 inviting the kith and kin for the 13th day ceremony of the deceased, contains the names of the respondents and sons-in-law, in the school records of the respondents 2 to 4, their father's name is mentioned as Subba Rachaiah, that none of the petitioners attended funeral and obsequies of the deceased and they did not care the deceased during ailment, that the voters' list discloses that the deceased was living with the first respondent at Rayachoty, that the loan discharge certificate in respect of the loan taken by the deceased from Rayachoty Co-operative Society, is with the first respondent, that in the ration card issued in favour of the deceased, the names of the respondents and their relationship was also mentioned. It is further stated that after the death of the deceased, the second petitioner attempted to obtain legal heir certificate from the Revenue Department without the knowledge of the respondents, which was rejected by the Revenue Officials. It is alleged that the petitioners were aware of their relationship with the deceased and therefore, they kept quiet for all these 34 years, that the first respondent filed a suit OS No. 190 of 1986 on the file of the District Munsif, Rayachoty as legal heirs of the deceased and the suit is pending, that the second respondent deposited SBBL gun with the Police after the death of the deceased, that the properties relating to the deceased are in possession of the respondents and the petitioners have nothing to do with the respondents.

6. Before the trial Court the petitioners have examined PWs.1 to 15 examined on their behalf of and RWs.1 to 3 were examined on behalf of the respondents and on scrutiny of the documents Exs.A1 to A1D marked on behalf of the petitioners and Exs.B1 to B41 marked on behalf of the respondents.

7. The trial Court having regard to both oral and documentary evidence, came to the conclusion that the 2nd petitioner is the legally wedded wife of the deceased and the petitioners 1, 3 and 4 are his legitimate children and as such held that they are entitled to issue succession certificate in their favour as legal heirs of the deceased in respect of the petition schedule securities, which was confirmed by the learned II Addl. Dist. Judge, Cuddapah, by his judgment dated 26-2-1997 in AS No.29 of 1992 dismissing the appeal, which is assailed in this Civil Miscellaneous Appeal.

8. Now adverting to the question whether the first appellant is the legally wedded wife of the deceased and appellants 2 to 4 are legitimate children born to them, are entitled for the issuance of succession certificate as per the provisions of Hindu Succession Act, 1956.

9. While addressing the arguments that the appellants are entitled to grant the succession certificate under Hindu Succession Act, the learned Counsel for the appellants has relied on a judgment *Sharttaram Tukaram Patail and another v. Smt. Dagubai Tukaram Patil and others*, , wherein a matter arose under Section 16 of the Hindu Succession Act, 1956. In the above case, Tukaram married Dagubai and she got three children from Tukaram and during the subsistence of marriage, Tukaram married Leelabai in the year 1976 and from her he got a son Shantaram. Thereafter, Tukaram died in June, 1978. After his death, Dagu Bai and her children (plaintiffs) filed a suit against Lilabai and her son (defendants) who were in possession of several properties which had been left by Tukaram, for a declaration that the defendants were not the legal heirs to Tukaram, that they had no right, title or interest in the properties of Tukaram and for possession of the said properties. Since the plaintiff, who were four in number, were entitled to succeed to the estate of Tukaram, they also prayed for partition and possession of the properties to the extent of 1/4th share to each of them or in the alternative they prayed that in case it was held that the first defendant had a share in the properties, then the Court should determine the shares and partition the properties and give the same in the respective possession of the parties. The main thrust of the plaintiffs, therefore, in the suit was that the defendants were not the legal heirs of Tukaram because the defendant 2 married Tukaram during the subsistence of the latter's valid marriage with Dagu Bai, the first plaintiff. Under the facts and circumstances, the Court held that under Section 16(1) of the Hindu Marriage Act, as substituted by Act 68 of 1976, a child of a marriage which is void under the provisions of the Hindu Marriage Act, whether a decree of nullity is passed or not, is a legitimate child and such a child does not acquire right to property which a legitimate child would, but the legitimacy confers upon him right to property of his parents under Section 16(3) of the Hindu Marriage Act. It is further held that the property of which such a child can lay claim must be the separate property of the parents and not the co-parcenary property in which the parents has a share. Since no child, whether legitimate or otherwise, acquires right by birth in the separate property of its parents, a child of a void marriage can only succeed to the property of its parents in accordance with the provisions of Section 8 or Section 15 of the Hindu Succession Act. A child of a void marriage is related to its parents within the meaning of Section 3(1)(j), Hindu Succession Act, because of the provisions of Section 16, Hindu Marriage Act; proviso to Section 3(1)(j) must be confined to those children who are not clothed with legitimacy under Section 6, Hindu Marriage Act.

10. The learned Counsel for the appellants has further relied on a judgment of Division Bench of this Court in *Rasala Surya Prakasarao and others v. Rasala Venkateswararao and others*, , wherein the scope of Section 16(1) of Hindu Marriage Act, as amended in 1976 was considered when the matter was referred by a learned single Judge to the Division Bench. In this case, the point for consideration before the Division Bench was a judgment in suit which was filed for partition of the plaint schedule properties into six equal shares and allotment of one such share each to the plaintiffs 1 and 2 and defendants 1 to 3 and to allot the remaining 1/6th share equally among the plaintiffs and the four defendants. The plaintiffs claim that the third plaintiff Rosamma and the fourth defendant Boosumma are the two wives of late Rasala Ramaiah and that Ramaiah married their plaintiff in

1951 and that the plaintiffs are the legitimate sons of Ramaiah born to third plaintiff. They claimed that the marriage of their took place in 1951 at Bhadrachalam, that the defendants 1 to 3 are the children of Ramaiah through the fourth defendant and claimed that as they are all members of a Hindu Joint Family, plaintiffs 1 and 2 are entitled to seek partition and they are entitled to equal share along with the defendants 1 and 2, it is further claimed that the plaintiffs are each entitled to 1/6th share plus 1/42nd share whereas the third plaintiff and fourth defendant, the widows of Ramaiah, are entitled to 1/42nd share each. But since the defendants did not effect partition inspite of demands, a registered notice was issued and then the suit for partition was filed. The defendants resisted the claim that Rasala Ramaiah never married the third plaintiff and she is not the second wife of Ramaiah, that she belongs to a different community namely Goldsmith while Ramaiah is Yadava by caste and the plaintiffs are not the children of Ramaiah and they are not entitled to any share. In the proceedings under the Land Ceiling Act, Ramaiah filed a declaration in CC No.457 of 1975 showing only the defendants 1 to 3 as his children and the fourth defendant as his wife, that they have gone to the extent of saying that plaintiff No. 3 is a debaucherous lady and it is not known through whom she begot plaintiffs 1 and 2. After the death of Ramaiah, when she claimed that she is the wife of Ramaiah and that plaintiffs 1 and 2 are the children of Ramaiah, to avoid litigation and at the instance of the elders of the village, two acres of land in Survey No.152 was given to the plaintiffs in full settlement of their claims. In that connection, a document was also executed on 12-8-1977. The plaintiffs have no right to claim partition of and they have no right in the property of Ramaiah.

11. So on the basis of the facts and circumstances of the case, the trial Court held that the marriage did take place between the plaintiff No.3 and Ramaiah but the marriage is not valid as the necessary rituals and ceremonies were not observed nor performed, then plaintiff No.3 lived with Ramaiah, she can be considered to be the exclusively kept concubine of Ramaiah and that plaintiffs 1 and 2 are the illegitimate children born to the plaintiff No.3 through Ramaiah. The Court considering Section 16 of the Hindu Marriage Act, held that plaintiffs 1 and 2, who are children of an invalid marriage, should be treated as legitimate children of Ramaiah for all practical purposes. It was also held that the plaintiff No.3 is not entitled to claim a share but she is entitled to maintenance against the share of Ramaiah. It was further held that as the defendants 1 to 3 are the natural sons of Ramaiah and as they are members of Hindu Joint Family, each of them is entitled to a 1/4th share and 1/4th share in the family properties which belonged to Ramaiah devolved-upon the plaintiffs 1 and 2 and defendants 1 to 4 and each of them is thus entitled to a 1/24th share. The Court further held that though there is some evidence of tentative arrangement of two acres of land being given to the plaintiffs, it does not estop the plaintiffs from claiming a share in the suit properties. The Court directed partition of the plaint schedule properties into 24 equal shares and for allotment of one such share each to the plaintiffs 1 and 2. It recognised the claim of plaintiff No.3 for maintenance against the share of her husband late Ramaiah.

12. Against the above said judgment, appeal was carried to this Court and a Division Bench of this Court in the above judgment after following the principle laid down by various High Courts and the Supreme Court in a catena of decisions held that even prior to the advent of Section 16 of the Hindu Marriage Act, both as per the Shastraic and Textual law, as well as the decisions of the highest Courts, the illegitimate son of a Sudra is entitled to enforce partition after the father's death. He is entitled to the rights of survivorship as he becomes a coparcener with the legitimate son, he is a

member of the family and he has a status as a son and by virtue of that he is entitled to the right of survivorship. Section 16 of the Hindu Marriage Act has conferred on him the status of legitimate son and his other pre-existing rights are, in no way, curtailed. After 1976 amendment of Section 16, the benefits of Section 16 are enlarged and such benefits are also conferred on a son of a marriage which is void under the provisions of the Hindu Marriage Act, whether a decree of nullity is passed or not, such a son becomes a legitimate son. Such a child is also entitled to rights of succession under the Hindu Marriage Act. A child of void marriage is related to its parents within the meaning of Section 3(1)(j) of the Hindu Succession Act by virtue of Section 16 of the Hindu Marriage Act. Proviso to Section 3(1)(j) must be confined to those children who are not clothed with legitimacy under Section 16 of the Hindu Marriage Act. Thus by virtue of Section 16(1) of the Hindu Marriage Act, as amended in 1976, the illegitimate son can be equated with his natural sons and treated as coparceners for the properties held by the father whether the property be originally joint family property or not. The only limitation is that during the lifetime of the father, the illegitimate son of a void marriage is not entitled to seek a partition. He can seek a partition only after the death of the father.

13. The learned Counsel for the appellants further relied on a recent judgment of the Supreme Court in *Rameshwari Devi v. State of Bihar and others*, 2000 (2) ALD 42 (SC). The subject matter in this case also arises under Section 16 of the Hindu Succession Act, 1956, concerning the dispute with regard to the payment of family pension and death-cum-retirement gratuity to two wives of Narain Lal, who died in 1987 while posted as Managing Director, Rural Development Authority of the State of Bihar. The appellant therein-Rameshwari Devi, is the first wife. Narain Lal is stated to have married second time with Yogmaya Devi on April 10, 1963 while the appellant was still alive. From the first marriage he had one son and from the second marriage four sons were born in 1964, 1971, 1972 and 1976. The learned single Judge in his judgment held that children born to Narain Lal from the wedlock with Yogmaya Devi were entitled to share the family pension and death-cum-retirement gratuity and further that family pension would be admissible to the minor children only till they attain majority. He also held that the second wife Yogmaya Devi was not entitled to anything, and the appeal preferred therefrom by the first wife, Rameshwari Devi was dismissed by the Division Bench. According to her, there was no marriage between Narain Lal and Yogmaya Devi and the children were, therefore, no legitimate. On appraisal of both the factual as well as legal aspects, the Supreme Court held that it cannot be disputed that the marriage between Narain Lal and Yogmaya Devi was in contravention of clause (i) of Section 5 of the Hindu Marriage Act and was a void marriage. Under Section 16 of the said Act, children of void marriage are legitimate. Under the Hindu Succession Act, 1956 property of a Hindu dying intestate devolve firstly on heirs in clause I which include widow and son. Among the widow and son, they all get shares and Yogmaya Devi can not be described as widow of Narain Lal, her marriage with the latter being void and the sons of the marriage between Narain Lal and Yogmaya Devi being the legitimate sons of Narain Lal would be entitled to the property of Narain Lal in equal shares along with that of Rameshwari Devi and the son born from the marriage of Rameshwari Devi with Narain Lal. That is the legal position when a Hindu male dies intestate.

14. Therefore, in view of the principles laid down by the High Courts and the Supreme Court, the learned Counsel for the appellants submits that the first appellant is the wife of the deceased and the

respondents 2 to 4 are legitimate children and they are entitled to succeed to the properties of the deceased on par with the second respondent and respondents 1, 3 and 4. Further in view of the benefits extended to illegitimate children under the Amended Provisions of Section 16(1) of the Hindu Marriage Act and Section 8, 10 and the Schedule annexed to the Hindu Succession Act, the judgments of both the Courts below are in contravention of the above decisions.

15. On the other hand, the learned Counsel for the respondents herein submits that the judgments rendered by the learned Subordinate Judge and confirmed by the learned Addl. District Judge are valid and sustainable in law and they do not call for any interference. He further submitted placing reliance on judgment of the Supreme Court in Rameshwari Devi's case, the learned Counsel for the respondents herein submits that the Apex Court has held that the children born out of void marriage are only entitled to succeed to the movable properties and not immovable properties. But I am afraid, such a distinction is not made by the Apex Court. On the other, it has emphatically held that the second wife Yogmaya Devi, though her marriage with Narain Lal was void marriage, but in view of the fact that they stayed for a longtime as wife and husband, the children bom to them are legitimate and they are entitled to the properties of Narain Lal under Sections 8, 10 and Schedule of Hindu Succession Act, therefore, property includes both movable and immovable properties. Therefore, I am unable to appreciate the above said contention raised by the learned Counsel for the respondents herein.

16. From the facts and circumstances of the case and the settled principles of law, it is clear that when a male Hindu contracts second marriage when the legally wedded first wife is alive, the marriage is in violation of Section 5(i) of the Hindu Marriage Act and it can be held that it is a void marriage, but the children born to them are legitimate children and they are entitled to succeed to the properties of their father, who died intestate and the second wife is not entitled to share the property of her husband, but she can claim maintenance. So applying the above said principle to the facts and circumstances of this case, the deceased married the first appellant, though it is claimed by the first appellant that the marriage took place in the year 1955, but as held by the trial Court the marriage took place after 1960, after the first appellant was appointed as a nurse, during the subsistence of the first marriage of the deceased with the second respondent. Therefore, the second marriage between the first appellant and the deceased is in contravention of Section 5(i) of the Hindu Marriage Act and therefore, it is a void marriage. Therefore, I hold that the first appellant is the wife of the deceased as both of them lived as husband and wife from 1960 onwards if not from 1955. But in view of the amended Provisions of Section 16(1) of the Hindu Marriage Act, 1976, the children born to them i.e., the appellants 2 to 4 are legitimate children and therefore, they are entitled to succeed to the property of the deceased on par with the second respondent and the respondents 1, 3 and 4. Therefore, in view of the above finding arrived at by the learned Subordinate Judge, Rayachoti in OP No. 16 of 1991 confirmed by the learned II Addl. Dist. Judge, Cuddapah in AS No.29 of 1992 that the appellants 2 to 4 are illegitimate children born to the first appellant and the deceased are not entitled for issuance of succession certificate to inherit the properties of the deceased is not correct. These judgments are perhaps rendered keeping in view the un-amended provisions of Section 16 of the Hindu Marriage Act.

17. Therefore, for better appraisal, the amended provision of Section 16(1) is extracted below:

".....Legitimacy of children of void and voidable marriages:

(1) Notwithstanding that a marriage is null and void under Section 11, and child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976) and whether or not a decree of nullity is granted in respect of that marriage under this Act whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2).....

(3)....."

Therefore, I am satisfied to hold that though the marriage between the first appellant and deceased is a void marriage inasmuch as it took place during the subsistence of the marriage of the deceased with the second respondent, but the children born to the first appellant and the deceased are legitimate children and they are entitled to the benefits conferred under the amended Section 16(1) of the Hindu Marriage Act, 1976. Therefore, they have a right to succeed to the properties of the deceased on par with the legal heirs under Sections 8, 10 and schedule annexed to the Hindu Succession Act.

18. Therefore, in view of the conclusions arrived at by me, I hold that the marriage between the first appellant and the deceased is a void marriage under Section 11 of the Hindu Marriage Act, but the children born to them i.e., the appellants 2 to 4 are legitimate children and they are entitled to issue succession certificate to inherit the petition schedule securities, along with the respondents.

Therefore, the Civil Miscellaneous Appeal No. 1645 of 1997 is partly allowed, but in the circumstances without costs.